Custom Capital Finance (Pty) Ltd Reg No 2003/025527/07
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GUARANTEE

1. Guarantee

1. I/We _____

   ID/Reg. No. _____

2. I/We _____

   ID/Reg. No. _____

Hereby bind myself/ourselves as guarantor(s) and co-principal debtor(s) for the payment when due of all the present and future debts of any kind

("the Debts") of _____

Legal Entity: _____

Reg No. _____

(The "Debtor") due to Custom Capital Finance (Pty) Ltd (Registration Number. 2003/025527/07 ("CUSTOM CAPITAL") or to anyone who takes transfer of CUSTOM CAPITAL's rights under this guarantee.

2. Debts covered by suretyship

The debts include, but are not limited to, debts incurred by the Debtor;

2.1 as surety for another's debts;

2.2 as a result of the transfer of rights; or

2.3 the substitution of a debt for another debt.

3. CUSTOM CAPITAL may take legal proceedings against me/us before recovering what it can from the Debtor

As I/we am/are also bound as a co-principal debtor(s) and my/our liability is NOT accessory in nature, I/we acknowledge that if the Debtor does not pay any of the Debts when they become due and payable, CUSTOM CAPITAL may, recover all or part of the Debts from me/us without first trying to recover them from the Debtor.

4. Multiple guarantors

4.1 If there are more than one of us, this guarantee applies to us individually and to any combination of us together (joint and several liability)

4.2 This is so even if any other person who was expected to sign this or any other guarantee as a guarantor for part or all of the Debts-

4.2.1 does not sign; or

4.2.2 is released as a guarantor; or

4.2.3 is found not to be bound as a guarantor.

5. Multiple debtors

Should there be more than one debtor, each of the debtors which is or becomes indebted to CUSTOM CAPITAL will be the Debtor under this suretyship.

6. Partnerships

If at any time a guarantor or the Debtor comprises the partners of a partnership and the partnership is dissolved, the guarantor or the Debtor for purposes of this guarantee will be:

6.1 the partners in that capacity of any partnership which takes over all or a substantial portion of the assets and liabilities and/or the business of the dissolved partnership, and

6.2 the trustee or liquidator of the assets and liabilities of the dissolved partnership while it is being wound up or liquidated

7. Recoverability of capital, interest and costs

7.1The total amount of the Debts which CUSTOM CAPITAL may recover from me/us under this guarantee is unlimited and includes all unpaid interest, that accrues or becomes payable on that amount or any lesser amount due by the Debtor from time to time as well as the costs mentioned in 7.2.

7.2 CUSTOM CAPITAL may recover from me/us all costs, taxes and commissions, including reasonable legal costs as between attorney and own client incurred by CUSTOM CAPITAL in any legal proceedings against me/us and/or against the Debtor for the payment of any or all of the Debts.

8. Events which do not affect my/our liability

My/our liability under this guarantee will not be affected by any-

8.1 loan or other facilities CUSTOM CAPITAL may grant to the Debtor

8.2 renewal, change or withdrawal of any facilities granted by CUSTOM CAPITAL to the Debtor:

8.3 compromise or other arrangement with the Debtor or any other person;

8.4 time, Indulgence or other favour given to the Debtor;

8.5 delay or omission in the enforcement of CUSTOM CAPITAL's rights; or

8.6 failure of CUSTOM CAPITAL to inform me/us of any breach by the Debtor.

9. Allocation of money received by CUSTOM CAPITAL

CUSTOM CAPITAL may treat any money which it received from me/us in respect of the Debts as cash security and/or may at any time use the money to reduce or extinguish the Debts or any part of them. CUSTOM CAPITAL may do the same with any proceeds from the disposal of my/our security to CUSTOM CAPITAL.

10.Insolvency of the Debtor or guarantor

10.1 The rights of CUSTOM CAPITAL against me/us will not be affected if the Debtor or any guarantor is Insolvent and CUSTOM CAPITAL does not prove its claims against the liquidator or trustees concerned

10.2 I/we irrevocably instruct the liquidator/trustee to pay CUSTOM CAPITAL any dividends which are paid in respect of any claim which I/we may prove unless:

10.2.1 I/we have paid the full amount due by me/us under this guarantee or

10.2.2 CUSTOM CAPITAL has informed me/us in writing that all CUSTOM CAPITAL's claims against the liquidator/trustee have been met.

11.Other security and other causes of my/our indebtedness to CUSTOM CAPITAL

11.1 This guarantee is in addition to any other suretyship or security which CUSTOM CAPITAL holds at any time for any of the Debts

11.2 This guarantee does not replace, reduce or extinguish any other grounds on which I/we may at any time be liable to pay the debts either as co-debtor(s) or partner(s) or otherwise.

11.3 This guarantee is not accessory is nature, and I/we understand that I/we are co-principal debtors with the Debtor.

12. Termination and cancellation

12.1 This guarantee does not end if temporarily there are not Debts or because of the death or legal disability of the Debtor or me/us.

12.2 Subject to the exceptions mentioned in 12.4, I/we may limit my/our liability for future Debts.

12.3 I/we may terminate my/our liability by written notice to CUSTOM CAPITAL which takes effect from the close of its business on the sixth day, excluding Sundays and public holidays, after the date of receipt of the notice (" the termination date").

12.4 From the termination date the amount of my/our liability under this guarantee will be the amount of the Debts as at the termination date plus:

12.4.1 Existing debts which are not yet due for payment (future rentals and Instalments under existing contracts) which will be considered present debts;

12.4.2 Interest which accrues on the amount of my/our liability after the termination date;

12.4.3 Debts revived after the termination date as envisaged in 13;

12.4.4 Contingent liabilities of the Debtor or any actual liabilities which arise from them; and

12.4.5 The costs mentioned in 7.2.

12.5 After the termination date CUSTOM CAPITAL may allow the Debtor to continue operating on any existing account with CUSTOM CAPITAL or may open a new account for the Debtor. No credit to either account will affect my/our liability as mentioned in 12.4.

12.6 My/our liability for the Debts will only end and when:

12.6.1 My/our liability has been extinguished; or

12.6.2 CUSTOM CAPITAL gives me/us a written release from liability under this guarantee; or

12.6.3 Custom Capital cancels this guarantee in writing.

12.7 This guarantee may only be terminated, cancelled or otherwise brought to an end in the way provided for in this guarantee.

13. Revival of Debts

Even after the termination date I/we will be liable for payment of-

13.1 any part of the Debts if any court sets aside any payment credited to any account of or relating to the Debtor before the termination date; or

13.2 any payment which Custom Capital believes it is obliged to refund.

14. Extension of prescriptive period

If Custom Capital's claims against me/ us are at any time due to prescribe (become unenforceable because of the lapse of time) before Custom Capital 's claims against the Debtor prescribe, I/we agree that the claims against me/us will prescribe on the same day as the claims against the Debtor prescribe.

15. Certificate of amount owing

A certificate signed by any manager or branch administrator of CUSTOM CAPITAL (whose appointment need not be proved) will be sufficient proof, unless the contrary is proved of the following stated in the certificate-

15.1 the amount of the Debts at any time;

15.2 the fact that the amount Is due and payable;

15.3 the rate of interest payable;

15.4 the date from which the interest is calculated; and

15.5 any other matter relating to the Debts.

16. Addresses for notices and the service of legal documents

16.1 I/we choose the address set out under my/our identity number/ registration number below to which documents in any legal proceedings against me/us, including notices of attachment of movable or immovable property, may be served;

16.2 I/we choose the email address below to which notices may be emailed and I/we accept that all letters or notices emailed to me/us by CUSTOM CAPITAL will be regarded as having reached me/us within 24hours of having been emailed.

16.3 I/we may choose any other street or postal address but must give at least 14 days written notice to CUSTOM CAPITAL.

16.4 Notices given by me/us to CUSTOM CAPITAL under this guarantee must be in writing. The notices must be delivered or sent by registered post to the branch or division of CUSTOM CAPITAL at which the Debtor's account is then held. CUSTOM CAPITAL may choose a different branch or division for this purpose but must give at least 14 days written notice to me/us.

17. General

17.1 Any acknowledgement of indebtedness by the Debtor or proof of claim against the insolvent estate of the Debtor will be binding on me/us.

17.2 No compromise or other arrangement regarding CUSTOM CAPITAL's claims against the Debtor will, if CUSTOM CAPITAL does not give written consent, release me/us from liability under this guarantee.

17.3 Any change in this guarantee will only be effective if it is in writing and signed by CUSTOM CAPITAL and me/us.

17.4 If any part of this guarantee is or becomes unenforceable, this will not affect the enforceability of the rest of this guarantee.

17.5 This guarantee is governed by South African Law

17.6 CUSTOM CAPITAL may bring legal proceedings against me/us in any District Magistrate's Court which has jurisdiction over me/us even if the amount involved exceeds the court.

18.Confirmation of compliance with formalities

When I/we signed this guarantee

(a) It had been completed in all respects up to this clause;

(b) CUSTOM CAPITAL had explained its contents to me/us;

(c) CUSTOM CAPITAL had advised me/us to get independent legal advice to make sure that I/we understand my/our commitment as guarantor.

(d) I/we had read and understood it;

(e) It was not subject to any conditions which prevented or delayed it coming into force or otherwise affected its provisions;

(f) I/we gave CUSTOM CAPITAL my/our consent to make enquiries about my/our credit record with any credit reference agency and any other party.

19.Cession and Assignment

19.1 The guarantor shall not cede any of its rights nor delegate any of its obligations under this guarantee without the prior written consent of CUSTOM CAPITAL.

19.2 CUSTOM CAPITAL may cede any or all of its rights in terms hereof to any third party without the prior notice to the guarantor. To the extent that any cession by CUSTOM CAPITAL of any of its rights under this guarantee results in a splitting of claims against the guarantor, the guarantor hereby consents to such splitting of claims.

20.Warranty and Indemnity

20.1 I/we agree and undertake to indemnify CUSTOM CAPITAL and keep CUSTOM CAPITAL indemnified and harmless against all losses, expenses and/or damages (including consequential damages), loss of revenue and profits, legal costs on a scale as between attorney and own client and any other costs or claims arising out of or in connection with or which may be sustained or incurred by CUSTOM CAPITAL as a direct or indirect consequence of CUSTOM CAPITAL having entered into the rental agreement/s with the Debtor and/or the signing of this guarantee.

1. Signed at _____ on _____ 2025

in the presence of the witness

Identity Number _____

Street Address _____

Postal Address _____

_____ _____

Signature (of or on behalf of first surety) Signature - Witness

Witness Full Name _____

2. Signed at _____ on _____ 2025

in the presence of the witness

Identity Number _____

Street Address _____

Postal Address _____

_____ _____

Signature (of or on behalf of first surety) Signature - Witness

Witness Full Name _____